



FAMILY-BASED • IR-1 / CR-1 / F2A

Marriage Green Card Guide

Permanent Residency Through Marriage to a U.S. Citizen or LPR

Complete guide for obtaining a Green Card through marriage — covers IR-1, CR-1, F2A categories, the I-130/I-485 process, evidence of bona fide marriage, removing conditions, and interview preparation.

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WHAT'S INSIDE THIS KIT:

✓ Eligibility requirements ✓ Step-by-step filing process ✓ Required forms & fees ✓
Complete document checklist ✓ Bona fide marriage evidence guide ✓ Conditional vs
permanent green card ✓ Form I-751 timing ✓ Interview preparation ✓ Common mistakes
to avoid ✓ Official USCIS resource links

All USCIS forms: uscis.gov/forms | Tools: immigrationiq.us

1. Marriage Categories Overview

There are three main pathways for marriage-based immigration. Your category determines wait times, processing, and whether you can adjust status inside the U.S. or must consular process.

IR-1 (Spouse of USC)	CR-1 (Spouse of USC <2yrs)	F2A (Spouse of LPR)
Married 2+ years to U.S. Citizen	Married <2 years to U.S. Citizen	Married to Lawful Permanent Resident
10-year permanent green card	2-year conditional green card	10-year green card after issuance
No annual visa cap	No annual visa cap	Annual cap — check Visa Bulletin
Faster processing	Same speed; I-751 needed later	Wait time varies by country
Concurrent I-130 + I-485 OK	Concurrent I-130 + I-485 OK	Must wait for priority date

TIP: Spouses of U.S. Citizens are 'immediate relatives' — no annual visa cap, fastest path. Spouses of LPRs face waiting periods that can range from current to several years depending on country of birth.

2. Eligibility Requirements

For the Petitioner (the U.S. Citizen or LPR)

- Must be a U.S. Citizen (USC) or Lawful Permanent Resident (LPR)
- Must be at least 18 years old to sign Form I-864 (Affidavit of Support)
- Must have U.S. domicile (or intent to re-establish before spouse arrives)
- Must meet income requirement: 125% of Federal Poverty Guidelines (100% for active military)
- If income falls short, can use a joint sponsor or qualifying assets

For the Beneficiary (the Foreign Spouse)

- Legally married — civil marriage recognized in the place celebrated
- Marriage must be bona fide — entered for love, not for immigration benefit
- Not currently married to anyone else (all prior marriages legally terminated)
- Both spouses age 18 or older at time of marriage
- Must be admissible to the U.S. (no disqualifying criminal/health/security grounds)
- If applying for Adjustment of Status, must have entered U.S. lawfully (with limited exceptions for IR-1)

■ Marriage fraud is a federal crime. Penalties include up to \$250,000 in fines and 5 years imprisonment for each spouse, plus permanent inadmissibility for the foreign spouse.

3. Step-by-Step Filing Process

- 1. Determine Filing Path:** If beneficiary is in the U.S. lawfully and is spouse of USC, you can file I-130 + I-485 concurrently. Otherwise, file I-130 alone, then consular process abroad.
- 2. File Form I-130 (Petition for Alien Relative):** USC/LPR petitioner files with USCIS. Establishes the qualifying family relationship. Filing fee: \$675.
- 3. File Form I-485 (Adjustment of Status) — if applicable:** Beneficiary files concurrently or after I-130 approval. Includes I-765 (work permit) and I-131 (travel doc) at no extra cost. Filing fee: \$1,440.
- 4. Biometrics Appointment:** Beneficiary attends ASC for fingerprints, photo, and signature. Usually 4-8 weeks after filing.
- 5. Receive EAD and Advance Parole (if I-485 filed):** Work permit and travel document typically issued 4-8 months after filing while green card pending.
- 6. Attend the Marriage Interview:** Both spouses must appear together. Officer evaluates legitimacy of marriage and reviews all evidence. May ask separate questions.
- 7. Receive Decision:** Approval = green card mailed within 2-4 weeks. If married <2 years on green card date, you receive conditional 2-year card (CR-1).
- 8. Remove Conditions (if CR-1) — File I-751:** File I-751 jointly with spouse 90 days before 2-year card expires. Required to get permanent 10-year green card.

TIP: If filing I-130 + I-485 concurrently, your spouse can typically remain in the U.S. legally during the entire process under an authorized period of stay.

4. Required Forms

Form	Purpose
I-130	Petition for Alien Relative — establishes the marriage relationship
I-130A	Supplemental Information for Spouse Beneficiary
I-485	Application to Register Permanent Residence (if adjusting in U.S.)
I-864	Affidavit of Support — petitioner's financial commitment
I-693	Report of Medical Examination (sealed by civil surgeon)
I-765	Application for Employment Authorization (free with I-485)
I-131	Application for Travel Document / Advance Parole (free with I-485)
I-751	Petition to Remove Conditions on Residence (CR-1 holders only)
DS-260	Online Immigrant Visa Application (consular processing)

5. Complete Document Checklist

Marriage & Identity Documents

- Original or certified marriage certificate (with English translation if needed)
- Divorce decrees or death certificates ending all prior marriages (both spouses)
- Both spouses' birth certificates with certified English translations
- Petitioner's proof of U.S. Citizenship (passport, naturalization certificate) or LPR (green card)
- Beneficiary's valid passport (biographic page)
- 2 passport-style photos for each applicant (2x2 inches, white background, taken within 30 days)

Financial Documents

- Most recent federal tax return (Form 1040) with all schedules and W-2s
- Three most recent pay stubs from current employer
- Letter from employer confirming employment, position, salary, dates
- Bank statements (3-6 months) showing assets
- If using joint sponsor: complete I-864 + all financial docs from joint sponsor

Bona Fide Marriage Evidence (CRITICAL — see Section 6)

Other

- Form I-693 medical exam (sealed envelope from USCIS-designated civil surgeon)
- Court records / police certificates if any criminal history
- Form G-325A biographical information (if requested)

6. Evidence of Bona Fide Marriage

This is the most critical part of the petition. USCIS must be convinced your marriage is genuine — entered into for love and a shared life, not to obtain immigration benefits. Submit as much documentation as possible across multiple categories.

Joint Financial Records

- Joint bank account statements (savings + checking, multiple months)
- Joint credit cards with statements showing both names
- Joint loans, mortgage, or vehicle financing
- Tax returns filed jointly (Married Filing Jointly)
- Joint life insurance and beneficiary designations

Cohabitation Proof

- Lease or mortgage with both names
- Utility bills (electric, gas, internet, water) with both names at same address
- Mail addressed to each spouse at the same address
- Joint property records, HOA documents

Insurance & Benefits

- Health, dental, vision insurance with spouse listed as beneficiary
- Auto insurance with both names
- Employer benefits showing spouse listed
- Retirement / 401(k) with spouse as beneficiary

Family & Social Evidence

- Photos together over time — wedding, vacations, holidays, family events (label dates and locations)
- Birth certificates of children born to the marriage
- Social media posts showing relationship
- Travel itineraries and boarding passes for trips together
- Affidavits from family and friends attesting to the marriage (notarized)
- Wedding photos, invitations, ceremony documents

TIP: Don't dump everything into one envelope. Organize evidence with a table of contents and tabs grouped by category. Submit copies, never originals (bring originals to interview).

7. Fees & Timeline

Item	Cost / Time
I-130 filing fee (online)	\$625
I-130 filing fee (paper)	\$675
I-485 filing fee (Adjustment of Status)	\$1,440
I-864 (Affidavit of Support)	\$0 (no separate fee)
I-693 medical exam	\$200-\$500 (varies by civil surgeon)
I-765 (work permit, with I-485)	\$0 (included)
I-131 (advance parole, with I-485)	\$0 (included)
I-751 (remove conditions)	\$750
DS-260 (consular processing)	\$325
I-130 timeline (USC spouse)	8-15 months
I-485 timeline (USC spouse, AOS)	10-14 months
F2A (LPR spouse) timeline	Varies by country — check Visa Bulletin
Conditional → permanent (I-751)	12-24 months

8. Common Mistakes to Avoid

- Insufficient bona fide marriage evidence — quality and variety matter, not just quantity
 - Filing I-130 alone when you could have filed I-130 + I-485 concurrently (USC spouses in U.S.)
 - Missing the I-751 filing window (90 days before conditional card expires)
 - Traveling outside U.S. with pending I-485 but no Advance Parole — abandons application
 - Forgetting to update USCIS of address change (Form AR-11) within 10 days
 - Filing without I-864 or with insufficient income proof
 - Not bringing originals of all evidence to the interview
 - Inconsistent statements between spouses during separated interview questions
 - Submitting unsigned forms or unsigned photos
- **Always consult a licensed immigration attorney before traveling internationally with a pending I-485. An incorrect departure can result in your case being denied or considered abandoned.**

9. Marriage Interview Preparation

The marriage interview is mandatory for I-485 cases and routine for consular cases. Both spouses should attend together (for AOS). Officers commonly ask:

- How and where did you meet?
- Date of first date, engagement, wedding
- Names of in-laws, siblings, close friends
- Daily routine — who wakes first, what each spouse does for work
- Bedroom layout, side of bed each sleeps on, color of toothbrush
- Recent shared events (last meal cooked, last vacation, last argument)
- Address and details of current home
- Joint finances — banks, who pays which bills

TIP: Bring a binder of organized originals: passports, birth/marriage certificates, financial records, photos with dates, and any new evidence since filing. Arrive 30 minutes early. Dress business casual.

YOUR IMMIGRATIONIQ TOOLKIT

→ AI Chat Assistant	immigrationiq.us/chat
→ Case Status Tracker	immigrationiq.us/case-tracker
→ Visa Bulletin Dashboard	immigrationiq.us/visa-bulletin
→ USCIS Fee Calculator	immigrationiq.us/fee-calculator
→ Find Immigration Lawyers	immigrationiq.us/lawyers
→ Free Legal Aid Resources	immigrationiq.us/lawyers (Free Legal Aid tab)



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For informational purposes only. NOT legal advice. Laws change frequently. Verify at uscis.gov. Consult a licensed immigration attorney for your specific situation.